

25STCV18926 25STCV18926

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Case Number: 25STCV18926 Hearing Date: September 14, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

ERIC M RAMIREZ,

Plaintiff,

vs.

GENERAL MOTORS, LLC., et al.,

Defendants.

Case No.:

25STCV18926

Hearing Date:

September 14, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

GENERAL MOTORS

LLC'S DEMURRER TO PLAINTIFF'S COMPLAINT

Background

Plaintiff Eric M Ramirez ("Plaintiff") filed this lemon law action on June 27, 2025, against Defendant General Motors, LLC ("GM"), alleging five causes of action (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement - concealment.

GM now demurs to the Complaint in its entirety. Plaintiff opposes. GM replied.

Request for Judicial Notice

The Court grants GM's request for judicial notice of Exhibit A.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) In testing the sufficiency of the complaint, the court assumes the truth of properly pleaded factual allegations, facts reasonably inferred from those expressly pleaded, and judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court, (1984) 153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-10.)

Under Code of Civil

Procedure section 430.10 subdivisions (e) and (f), a demurrer may be filed if the pleading is uncertain or does not state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

Discussion

A. Allegations of the Complaint

In the Complaint, Plaintiff alleges that on “June 5, 2019, Plaintiff entered into a warranty contract with Defendant GM regarding a 2019 GMC Sierra 1500, ... which was manufactured and or distributed by Defendant GM.” (Compl., ¶ 6.) Plaintiff alleges the vehicle came with “various warranties, including but not limited to the bumper-bumper warranty, powertrain warranty, emission warranty, etc.” (Id., ¶ 7; see id., Ex. A, p. 2 [“Coverage is for the first 3 years or 36,000 miles, whichever comes first.”].)

Plaintiff further alleges that “[d]efects nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to transmission defects, engine defects, electrical defects; among other defects and non-conformities,” which rendered the value of the vehicle “worthless and /or de minimis.” (Compl., ¶¶ 11, 13.) Plaintiff alleges that “[u]nder the Song-Beverly Act, Defendant GM had an affirmative duty to promptly offer to repurchase or replace the Subject Vehicle at the time if failed to conform the Subject Vehicle to the terms of the express warranty after a reasonable number of repair attempts,” but “GM has failed to either promptly replace the Subject Vehicle or to promptly make restitution in accordance with the Song-Beverly Act.” (Id., ¶¶ 14-15.)

B. First and Second Causes

of Action for Express Warranty: Statute of Repose and Statute of Limitations

GM contends that Code of Civil Procedure section 871.21, effective on January 1, 2025, bars Plaintiff's first three causes of action^[1] because the Song-Beverly Act now prescribes a six-year statute of repose and a shortened statute of limitations.

Assembly Bill 1755, effective for cases filed after January 1, 2025, provides that the statute of limitations for Song-Beverly Act actions is "one year after the expiration of the applicable express warranty." (Code Civ. Proc., § 871.21, subd.

(a).) However, "[n]otwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).) This statute of repose imposes a six-year deadline from the date of delivery to the initiation of the lawsuit, irrespective of when the breach occurred or the length of the warranty. (See

Inco Development Corp. v. Superior Court (2005) 131 Cal.App.4th 1014, 1020 ["A statute of repose has nothing to do with the date of injury, but bars all suits after the expiration of a specified

time from the manufacture or delivery of a product or a transaction."].) The statute must be opted into, but if a manufacturer does, it

applies to "restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code." (Code Civ. Proc., § 871.20, subd. (a).)

The new code section also provides for tolling of both the statute of limitations and statute of repose in three instances:

"(1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. ^[¶]

(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. ^[¶] (3) For the time period after a pre-suit notice is

provided to the manufacturer in accordance with Section

871.24, which time period shall not exceed 60 days." (Code Civ. Proc., § 871.21, subd. (c).)

Plaintiff opposes GM's

contention, asserting that the statute cannot apply retroactively. Plaintiff cites Rosefield Packing Co. v. Superior Court

(1935) 4 Cal.2d 120, 122-123, where our Supreme Court specified that "[i]n accordance with this principle it has been specifically held that the legislature may shorten or extend the period of the statute of limitations, or

similar time statutes relating to procedure, and that the changed period may be made applicable to pending proceedings. [Citations.] There is, of course, one important qualification to the rule; where the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party." Plaintiff asserts that "Defendant seeks to have this Court apply Code of Civil Procedure section 871.21 retroactively, changing the amount of time for Plaintiff and suddenly leaving Plaintiff with an unreasonably short period of time in which to file suit." (Opp., 5:4-6.) However, Plaintiff's contention that applying the statute in this way "violate[s] fundamental constitutional principles of due process" is without merit. (Opp., 5:11.)

"In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all." (Aronson v. Superior Ct. (1987) 191 Cal.App.3d 294, 297.)

AB 1755 passed in 2024 and was approved by Governor Gavin Newsom and filed with the Secretary of State on September 29, 2024. (Cal. Leg. Information, Code Civ. Proc, § 871.20.) Moreover, a public statement about the signing was released (<https://www.gov.ca.gov/wp-content/uploads/2024/09/AB-1755-SIGNING-Message.pdf>). This provided Plaintiff with just over three months to file his lemon law case before the statute went into effect, but he did not. Even after the statute went into effect, Plaintiff had six months to file this action, but Plaintiff still did not file in time. Moreover, Plaintiff purchased his vehicle in 2019 and asserts that "[d]efects and nonconformities to warranty manifested themselves within the [three-year] express warranty period," Plaintiff had ample opportunity to file his Complaint prior to when section 871.20 took effect. (Compl., ¶ 11; Ex. A, p. 2.)

Next,

Plaintiff asserts that GM cannot invoke section 871.21's statutes of repose or limitations because it is contingent on whether GM opted in under the new procedures in section 871.29, which Plaintiff contends did "not become fully effective until July 1, 2025." (Opp., 6:8.) The statute states that "[w]ithin 30 days of the effective date of the act adding this section, a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years." (Code Civ. Proc., § 871.30, subd. (a).) The statute requires a manufacturer to opt in under Code of Civil Procedure section 871.29 for section 871.21 to apply. This text became effective April 2, 2025, and GM opted in on April 23, 2025. (RJN Ex. A; see also https://www.dca.ca.gov/acp/accepted_manufacturers.shtml.) Although the text's effective date is after Plaintiff filed his complaint on June 27, 2025, section 871.30 of the new statutory scheme specifically addresses this issue.

Code of Civil Procedure

section 871.30, subdivision (c) provides that if a manufacturer opts in on or before May 1, 2025, the statute applies to all actions filed on or after January 1, 2025. As GM notes in its reply, "[n]ot only did the amendments not change the statute's effective date, but the amended provisions also make clear that Section 871.21 and each of the other sections apply to all cases filed after January 1, 2025. Specifically, Section 871.30 provides that if a manufacturer opts-in on or before May 1, 2025, the statute applies to all actions filed on or after January 1, 2025." (Reply, 2:17-20; see Code Civ. Proc., § 871.30, subd. (c) ["Unless a manufacturer has made the election described in subdivision (a), Sections 871.20 to 871.28, inclusive, shall not apply to an action described in subdivision (a) of Section 871.20, including actions already filed between January 1, 2025 and the effective date of the act adding this section, with respect to all of its vehicles sold new in the year 2025 and in all prior years."].) Because Plaintiff filed his complaint after January 1, 2025, and GM opted into the statute, his first and second causes of action are barred by the time limits expressed by the statute of repose and limitations.

Plaintiff also contends that section 871.21's time limits may be tolled by equitable tolling doctrines. However, section 871.21 only allows tolling in three circumstances, as noted above, and "Plaintiff does

not specifically allege that any of these three tolling circumstances are satisfied here.” (Reply, 6:25-26.) Furthermore, because section 871.21 is also a statute of repose, Plaintiff’s suit is barred after the 6-year date regardless of whether Plaintiff alleges facts that might otherwise extend his time to file under the delayed discovery rule.

Accordingly, the Court sustains GM’s demurrer as to Plaintiff’s first and second causes of action without leave to amend.

C. Third Cause
of Action for Violation of Civil Code Section 1793.2,
Subdivision (a)(3)

GM demurs to Plaintiff’s third cause of action for the same points asserted in the preceding section. However, in Plaintiff’s opposition, Plaintiff correctly points out that “Section 871.21, by its plain terms, does not apply to inadequate literature/parts claims under Civil Code section 1793.2(a)(3).” (Opp., 5:16-18.)

For the statute of limitations and repose to apply, the action must fall under Code of Civil Procedure section 871.20, subdivision (a); however, this statute leaves out Civil Code section 1793.2, subdivision (a)(3). (See Code Civ. Proc., § 871.20, subd. (a) [“Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2 Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.”].) Plaintiff’s third cause of action arises out of GM’s alleged failure to provide “sufficient service literature and replacement parts to effect repairs during the express warranty period.” (Compl., ¶ 38.) Accordingly, Plaintiff contends that his “inadequate literature/parts claim under section 1793.2(a)(3) does not arise under any of the sections enumerated in section 871.20(a). Accordingly, they are not subject to section 871.21’s statutes of limitations.” (Opp., 6:1-3.)

GM does not address this argument in its reply. However, the Court notes two things. First, Plaintiff

does not demonstrate that this cause of action is not time-barred, because the Court cannot ascertain when GM failed to comply with the statute. The assertion that it occurred “during the express warranty period” does not demonstrate that this cause of action is not barred by the statute of limitations or that equitable tolling doctrines apply. Second, the cause of action alleges that “Defendant GM's failure to comply with its obligations under Civil Code section 1793.2, subdivision (a)(3) was willful, in that Defendant GM knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant GM failed to take any action to correct its failure to comply with the law. Accordingly, Plaintiff is entitled to a civil penalty of two times Plaintiff's actual damages, pursuant to Civil Code section 1794(c).” (Compl., ¶ 39.) However, Code of Civil Procedure section 871.20 does apply to “civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” Although the cause of action is for Civil Code section 1793.2, subdivision (a)(3), the relief Plaintiff seeks falls within the statute of limitations and repose. Accordingly, the Court sustains the demurrer with leave to amend because Plaintiff may be able to resolve these issues on amendment.

D. Fourth Cause of Action for Breach of Implied Warranty: Statute of Limitations

GM contends that Plaintiff's implied warranty cause of action is time-barred.

Implied warranty causes

of action are subject to a four-year statute of limitations. (Cal. U. Com. Code, § 2725, subd. (1).) [“An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.”] “A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Cal. U. Com. Code, § 2725, subd. (2).) Additionally, “[t]he duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the

duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer." (Civ. Code, § 179.1, subd. (c).)

GM asserts that because

a breach of implied warranty cause of action accrues from the time the purchase was made, and Plaintiff purchased the vehicle on June 5, 2019, "Plaintiff's breach of implied warranty cause of action accrued on that date and expired four years later on June 5, 2023. Plaintiff did not file suit; however, until June 27, 2025, two years after the statute expired." (Dem., 13:21-23.)

Plaintiff asserts that

the implied warranty cause of action is not time-barred, and Plaintiff cites to *¿Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304¿, where the Court of Appeal articulated that "¿[t]he implied warranty of merchantability may be breached by a latent¿defect undiscoverable at the time of sale.¿" The Mexia Court noted that "¿[i]n the case of a latent defect, a product is rendered unmerchantable, and the¿warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.¿" (¿Id. at p. 1305.)

Plaintiff states that he "had no way of knowing about Defendant's wrongdoing until the defect manifested itself and Defendant was unable to repair it after a reasonable number of repair attempts." (Opp., 12:11-13.)

In response, GM contends

that courts have consistently held that implied warranties do not extend to future performance of the goods; however, to support this contention, GM cites *Cardinal Health 301, Inc. v. Tyco Elecs. Corp.* (2008) 169 Cal.App.4th 116, an implied warranty case that does not involve the Song-Beverly Act. Thus, Mexia, a Song-Beverly Act case, is the applicable precedent here.

In Plaintiff's Complaint,

he alleges that he "discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them." (Compl., ¶ 24.) Plaintiff also alleges that "[a]t the time of sale, the subject vehicle was sold with one or more latent defect(s)." (Compl., ¶ 43.) Accordingly, Plaintiff alleges that he did not discover the defects until recently and that the vehicle's defects existed during the applicable warranty period. Thus, Plaintiff meets the pleading standard on demurrer, and the Court overrules GM's

demurrer as to the fourth cause of action.

E.

Fifth

Cause of Action for Fraudulent

Inducement - Concealment: Statute of Limitations

GM

demurs to the Complaint on the grounds that Plaintiff's fraudulent inducement - concealment cause of action is barred by the statute of limitations.

Pursuant to Code of Civil Procedure section 338, subdivision (d), there is a three-year statute of limitations for "[a]n action for relief on the ground of fraud or mistake." "The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Ibid.)

GM asserts that "[t]o assert a fraud claim based upon alleged Fraudulent Inducement-Concealment, Plaintiff had to file a claim no later than June 5, 2022. Plaintiff did not. Plaintiff did not file the Complaint until June 27, 2025 — three years too late." (Dem., 14:2-4.) GM also asserts that "Plaintiff cannot invoke the delayed discovery rule." (Dem., 14:5.)

Plaintiff counters that

"these facts do not establish that Plaintiff's fraudulent inducement-concealment claim regarding the Transmission Defect must run from the date of sale. Under Code of Civil Procedure section 338, subdivision (d), the cause of action only accrues once a plaintiff discovers the facts constituting the fraud. The fact that the alleged fraud by omission occurred on the date of sale does not establish that Plaintiff discovered facts constituting fraud on that date." (Opp., 12:25-13:2.) Plaintiff correctly contends that the statute of limitations for fraud does not begin to run until the discovery of the alleged fraud. However, a plaintiff must allege sufficient facts to support the invocation of the discovery rule. "The discovery-related facts should be pleaded in detail to allow the court to determine whether the fraud should have been discovered sooner." (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472; see also CAMSI IV v. Hunter Technology Corp. (1991) 230 Cal.App.3d 1525, 1536-1537 ["A plaintiff whose complaint shows on its face that his or her claim would be

barred by the applicable orthodox statute of limitations, and who intends to rely on the discovery rule to toll the orthodox limitation period, 'must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. [Citations.] Mere conclusory assertions that delay in discovery was reasonable are insufficient and will not enable the complaint to withstand general demurrer. [Citation.]'").)

The Court notes that

Plaintiff alleges he "discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful attempts to repair them." (Compl., ¶ 24.) Plaintiff also pleads that he "could not reasonably have been expected to learn of or discover the Vehicle's Transmission Defect and its potential consequences until well after Plaintiff purchased the Vehicle." (Compl., ¶ 53c.) Although Plaintiff pleads why he was unable to make the discovery earlier, he does not adequately detail the time and manner of discovery. Plaintiff's allegation that he made the discovery shortly before filing the Complaint is conclusory and does not meet the delayed discovery pleading standard. Plaintiff alleges when the defect generally manifested and how he generally became aware of the defect, but this lacks the proper specificity. Thus, the Court finds that Plaintiff failed to plead sufficient facts to show that he is entitled to the benefit of tolling under the discovery rule. Based on the foregoing, the Court sustains GM's demurrer to the fifth cause of action, with leave to amend.

In light of the ruling

on the statute of limitations issue, the Court need not address the other issues raised by GM in the demurrer.

Conclusion

Based on the foregoing, GM's demurrer to the first and second causes of action is SUSTAINED without leave to amend. GM's demurrer to the third and fifth causes of action is SUSTAINED with leave to amend. GM's demurrer to the fourth cause of action is OVERRULED.

The Court orders Plaintiff to file and serve an amended complaint, if any, within 20 days of this Order. If no amended complaint is filed within 20 days of this Order, GM is ordered to file and serve its answer within 30 days of this Order.

GM is ordered to give notice of this Order.

DATED: September
14, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court

[1] The Court will only discuss the merits of the first two causes of action in this section, as Section C, *infra*, is dedicated to the third cause of action.